



**Bylaw Amendment Proposal
(vedtektsendringsforslag)
Eclipse NMBU**

Plain-language explanation of the changes: 26H-ECL-GA-CASE4B

Eclipse NMBU
Norwegian University of Life Sciences, Norway

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Companion to: the full proposed New Bylaws text, 26H-ECL-GA-CASE4A, and the voting procedure, 26H-ECL-GA-CASE4C. This document has no independent legal effect: if it conflicts with 26H-ECL-GA-CASE4A, the full text controls.

Why a restructuring, not a patch

The Old Bylaws (13 sections) have not kept pace with Eclipse NMBU's growth: the C-suite, membership system, project process and delegation of authority have all grown informally beyond what the Old Bylaws describe. Rather than patch individual sections, the Board proposes a full restructuring into 18 sections across five parts, so that the written Bylaws match how the Association actually operates.

What changes

1. C-suite structure. The Board goes from CEO/CTO/CFO/CMO to CEO/CTO/CBO/CPO.

- CFO (finance) and CMO (marketing/external communication) are merged into a single **CBO: Chief Business Officer**, who holds full, undelegated authority over the Association's economy.
- A new **CPO: Chief People Officer** takes over membership administration, recruitment and internal culture – work that previously had no dedicated owner.
- The **CTO** becomes the Association's formal **Deputy Chair (nestleder)**, automatically stepping into the CEO's responsibilities when the CEO is unavailable. This did not exist under the Old Bylaws.

2. Six membership tiers, not four. **Mentor** and **Alumni** are added as formal tiers alongside Board Member, Core Member, Active Member and Inactive Member. Alumni status is now automatic when a Membership Contract lapses without renewal, rather than undefined.

3. Election and Control Committee. A new three-member committee, elected each autumn, takes over running elections and advance nominations, and monitors Bylaw compliance: work currently done informally by the Board itself. The committee is first elected at a Supplementary General Assembly after the new C-suite takes office. This General Assembly's own election uses the Old Bylaws' election mechanics (see Case 6).

4. Two General Assemblies a year, with different jobs. The New Bylaws formally distinguish a spring **Elective General Assembly** (full Board elections) from an autumn **Supplementary General Assembly** (fills vacancies, elects the Election and Control Committee). The Old Bylaws did not distinguish these: every General Assembly did full elections. This General Assembly is held under the Old Bylaws, so the distinction applies only to future General Assemblies.

5. Delegation and signature, formalised. Under the Old Bylaws, the whole Board jointly held Signature Right. Under the New Bylaws, the **CEO alone** holds Signature Right and the Association's overall Mandate, but is **required** to delegate authority to the other Board members in their areas (subject to General Assembly approval), and may delegate Signature Right to them directly. The key idea, carried through this whole document set, is that **signing on the Association's behalf is itself a responsibility**, not just an administrative permission: see the Responsibility & Signature Contract, 26H-ECL-GA-RESP1A/1B.

6. Project gates. Starting a project now formally requires an MCR (Mission Concept Review) and an SRR (System Requirements Review) before the Board approves it, following a modified NASA Project Life Cycle. The Bylaws fix MCR and SRR as mandatory gates; the detailed phase model and any further gate reviews are set out in the Association's governance documents (§16.3).

7. English as operating language. Eclipse NMBU's operating language becomes English; Norwegian-language documents must be translated to English (and vice versa, on request).

8. Privacy. Members gain an explicit, written right to request deletion of their personal data at any time, with the Association obliged to tell members about this right when they join and when they leave.

9. Higher bar for future Bylaw Amendments. Under the Old Bylaws, a future Bylaw Amendment needs 2/3 of all members to vote in favour, however few attend. Under the New Bylaws (§17.1), a future Bylaw Amendment needs both: 2/3 of all members physically present at the General Assembly at the time of the vote, *and* 2/3 of those present voting in favour. This makes the Association's own constitution harder to change on a thin turnout, either way.

10. Digital record-keeping. A new clause (§14.11) requires every document of the Association, including agreements signed on paper, to also be kept digitally. A paper signature no longer excuses a document from digital archiving.

What does not change

The Association's name, purpose, independence, self-owning legal status, core ethics/environment principles, whistleblowing process (now clarified to route through the CPO), and the prohibition on proxy voting all carry over unchanged in substance.

What this vote actually decides

Adopting the New Bylaws is a single constitutional decision requiring 2/3 of *all* Eclipse NMBU members (not just those present) to vote in favour: see 26H-ECL-GA-CASE4C for exactly how that vote is structured alongside any submitted Amendments to this text.